# Zero Tolerance Policy: Violent and Aggressive Behaviour

| | |
|---|---|
| **Practice** | Kirkcaldy Dental & Implant Clinic, 23–25 Tolbooth Street, Kirkcaldy KY1 1RW |
| **PSM section** | Communication › Dealing with violent patients |
| **Policy lead** | Practice Manager [Name] (with Health & Safety Lead [Name]) |
| **Version** | 1.0 (draft for adoption) |
| **Adopted** | [date] |
| **Next review** | [date – 12 months after adoption] |

## 1. Purpose

Everyone at Kirkcaldy Dental & Implant Clinic has the right to work without fear of violence, threats or abuse. Patients and visitors have the right to a safe environment. The practice operates a zero tolerance approach to violent, threatening or abusive behaviour.

This policy explains how the practice prevents, responds to, records and follows up violent or aggressive incidents, including the immediate deregistration of NHS patients where required by the Terms of Service for Dentists.

## 2. Scope

- All staff, including locums, trainees and contractors.
- All patients (NHS and private), their companions and visitors.
- Behaviour in the practice, on the phone, by email, on social media and online, and during any domiciliary visits.

Behaviour covered includes physical violence, threats, verbal abuse, racist, sexist or other discriminatory abuse, intimidation, damage to property, and behaviour that makes a dentist or staff member fearful for their safety.

This policy does not prevent patients from complaining. Raising a complaint, however strongly, is not in itself unacceptable behaviour.

## 3. Legislation and guidance

As cited in the PSM:

- The National Health Service (General Dental Services) (Scotland) Regulations 2010, Schedule 1 – Terms of Service for Dentists, with 2016 and 2023 amendments (deregistration and violent patients).
- Health and Safety Executive, *Violence in health and social care*.
- Health and Safety Executive, *Violence at Work: a Guide for Employers*.
- NHS National Services Scotland, *Withdraw a patient* (2024).

PSM pages:

- https://www.psm.sdcep.org.uk/topics/communication/dealing-with-violent-patients/

- https://www.psm.sdcep.org.uk/topics/communication/deregistration-of-nhs-patients/

# 4. Responsibilities

| Role | Responsibility |
|---|---|
| Practice Owner / Principal Dentist [Nas] | Overall accountability. Decides on deregistration or refusal of further private treatment. |
| Practice Manager [Name] | Owns this policy. Arranges security measures and training. Reports incidents to the police and NHS Fife. Keeps the incident log. |
| Health & Safety Lead [Name] | Includes violence and aggression in the practice risk assessment, including lone working and domiciliary visits. |
| All staff | Follow this policy, use the panic alarm when needed, report every incident, and complete a Violent Incident Report. |

# 5. Policy / procedure

## 5.1 Prevention

1. **Risk assessment.** The Health & Safety Lead assesses the risk of violence. Security should be based partly on knowledge of patients' past behaviour and on the location of the practice. Review annually and after any incident.
2. **Warning signs.** Staff are trained to recognise warning signs (raised voice, pacing, clenched fists, threats, intoxication) and the common causes of violence in healthcare (pain, anxiety, long waits, unexpected costs).
3. **Panic alarms.** [Practice decision: install a button-activated panic alarm in each surgery and at reception, linked to [reception / monitoring company].] Consider personal portable alarms, especially where a staff member may be alone with a patient.
4. **Lone working and out-of-hours.** Re-opening the surgery after normal hours is a known risk. No staff member re-opens the practice alone after hours [practice decision: minimum two staff, or a call-in arrangement]. See the lone working arrangements in the health and safety policy.
5. **Domiciliary visits.** Carry out a risk assessment before any domiciliary visit. [Practice decision: whether the practice provides domiciliary care.]
6. **Alerts.** Where a patient has a history of violent behaviour, add a discreet alert in Dentally so staff can plan (e.g. a second staff member in the surgery).
7. **Notices.** Display a zero tolerance notice in the waiting area and include a statement in the practice information leaflet and on the website.
8. **Reducing triggers.** Keep patients informed of delays, give clear cost estimates, and deal promptly with concerns.

## 5.2 Responding to an incident

**Verbal abuse or threatening behaviour**

1. Stay calm. Speak quietly and clearly. Do not argue or raise your voice.
2. Keep a safe distance and an exit route. Do not turn your back.

3. Ask the person to stop. Explain that the behaviour is not acceptable.
4. Call a colleague or the Practice Manager to support you.
5. If the behaviour continues, ask the person to leave. Tell them the incident will be recorded.

**Violence or a threat to safety**

1. Your safety comes first. Leave the area if you can.
2. Activate the panic alarm or call for help.
3. Dial **999** for the police.
4. Do not attempt to restrain the person unless absolutely necessary to protect someone from immediate harm.
5. Move other patients and staff to a safe area.
6. Give first aid to anyone injured. Follow the medical emergencies policy.
7. Preserve any evidence (e.g. CCTV, damaged items) for the police. [Practice decision: whether CCTV is installed; if so, follow the data protection policy.]

**Abuse by phone, email or online**

1. On the phone, warn the caller once that the call will end if the abuse continues, then end the call.
2. Keep emails, messages and screenshots of online posts.
3. Report to the Practice Manager the same day.

### 5.3 After the incident

1. Complete a **Violent Incident Report** (PSM template) as soon as possible, and the same day. Include date, time, place, people involved, witnesses, what was said and done, injuries, damage and action taken.
2. The Practice Manager reviews the report with the staff involved.
3. Offer support to staff affected, including time off where needed and access to [occupational health / employee assistance – practice decision].
4. Consider whether the incident must be reported under RIDDOR (see the health and safety policy).
5. Review the risk assessment and security measures.
6. Discuss the incident (without blame) at the next staff meeting for learning.

### 5.4 Deregistration of NHS patients for violence

The Terms of Service for Dentists, as described in the PSM, require the following:

1. **De-register, with immediate effect**, any patient who has committed an act of violence or has made a dentist or their staff fearful for their safety.
2. **Report the incident to the police** and keep a copy of all communication.
3. **Notify NHS Fife** that the practice wishes to terminate the capitation arrangement immediately due to violent conduct.
4. **Notify the patient** by phone or email, and follow with **written confirmation within 7 days**. Email is not considered written confirmation; send a letter. [Practice decision: by recorded delivery.]
5. NHS Fife should then take all reasonable steps to notify the individual of their deregistration.
6. Keep copies of the police report reference, the notification to NHS Fife and the letter to the patient.

See Policy 05 – NHS Registration, Deregistration, Change of Dentist, Appointments and Recall for the full deregistration process and the NHS National Services Scotland *Withdraw a patient* guidance.

### 5.5 Private patients

For private patients the Practice Owner may decide to end the professional relationship. Write to the patient confirming the decision, and tell them how to obtain emergency care and their records. [Practice decision: wording of private patient termination letter.] Report violence to the police in the same way.

### 5.6 Lesser incidents: warning letter

For less serious unacceptable behaviour that does not involve violence or fear for safety, the Practice Manager may send a warning letter explaining that further incidents may lead to deregistration. Any non-immediate deregistration of an NHS patient follows the 3-month notice process in policy 05. [Practice decision: use of warning letters.]

### 5.7 Fairness

Consider whether behaviour is linked to a medical condition, disability, learning disability or distress, and whether reasonable adjustments could help. A capitation arrangement cannot be terminated solely on grounds relating to the patient's race, gender, social class, age, religion, sexual orientation, appearance, disability or medical condition. Deregistration for violence must be based on the conduct itself.

## 6. Records and monitoring

- Violent Incident Reports are kept in the incident file [location], separate from the patient's clinical record. A brief factual alert may be placed in Dentally.
- Keep copies of all communication with the police, NHS Fife and the patient.
- The Practice Manager reviews the incident log every [6] months for patterns and reports to the Practice Owner.
- The risk assessment is reviewed annually and after each incident.

## 7. Training

- All staff receive training on this policy at induction.
- Consider training in the causes of violence, recognising warning signs and de-escalation [practice decision: provider and frequency].
- Staff are shown how to use the panic alarms and practise the response.

## 8. Related policies and templates

PSM templates to download and adapt (Templates › Communication):

- Zero Tolerance (May 2023)
- Violent Incident Report (May 2023)

Related policies in this set:

- Policy 05 – NHS Registration, Deregistration, Change of Dentist, Appointments and Recall
- Policy 01 – Feedback, Comments, Concerns and Complaints Procedure
- Policy 07 – Raising Concerns and Whistleblowing Policy
- 17 Health and safety (risk assessment, lone working) and 34 Medical emergencies

## 9. Inspection checklist

- ☐ A zero tolerance policy setting out how violent incidents are dealt with is in place.
- ☐ Violence and aggression are included in the practice risk assessment, including lone working and out-of-hours re-opening.
- ☐ Panic alarms have been considered (and installed where staff may be isolated with a patient).
- ☐ Risk assessment is carried out before domiciliary visits.
- ☐ Violent incidents are recorded on a Violent Incident Report.
- ☐ Staff know how to de-register a violent NHS patient with immediate effect, report to the police and notify NHS Fife.
- ☐ Written confirmation to the patient is sent within 7 days and copies kept.
- ☐ Staff have been offered training in recognising and managing aggression.

## Staff sign-off

| Name | Role | Signature | Date |
|---|---|---|---|
| | | | |
| | | | |
| | | | |